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LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Wednesday,
September 23, 2026

Department M Calendar No.

PROCEEDINGS

Ilse Patricia Medel, et al. v. Blythe
Street Properties, LLC, et al.

25TRCV03957

1. Blythe Street Properties, LLC's Motion to Set Aside and
Vacate the Default Judgment

T'ENTATIVE RULING

Blythe Street Properties, LLC's
Motion to Set Aside and Vacate the Default is granted.

Background

Plaintiffs filed the Complaint on November 19, 2025.

Plaintiffs allege the following facts. Plaintiffs are tenants at property
owned, maintained, and controlled by Defendants. Defendants failed to maintain

a safe and habitable premises leading to Plaintiffs' injuries. The property is located at 436 W. Imperial Avenue, El Segundo, California 90245. Defendant's default was entered on January 7, 2026. Default judgment has yet to be entered.

Motion to Set Aside Default

CCP § 473(b) states, in relevant part: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. . . ."

Code Civ. Proc., § 473(c)(1) states:

"Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:

(A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.

(B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.

(C) Grant other relief as is appropriate.”

CCP § 473.5(a) states, in relevant part: “When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.”

CCP § 473.5(b) states: “A notice of motion to set aside a default or default judgment and for leave to defend the action shall designate as the time for making the motion a date prescribed by subdivision (b) of Section 1005, and it shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” The phrase “actual notice” means “genuine knowledge of the party litigant” and does not include constructive or imputed notice to the client. *Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077.

“After six months from entry of default, a trial court may still vacate a default on equitable grounds even if statutory relief is unavailable. . . . One ground for equitable relief is extrinsic mistake—a term broadly applied when circumstances extrinsic to the litigation have unfairly cost a party a hearing on the merits. Extrinsic mistake is found when [among other things] ... a mistake led a court to do what it never intended[.] When a default judgment has been obtained, equitable relief may be given only in exceptional circumstances. [W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court. Beyond this period there is a strong public policy in favor of the finality of judgments and only in exceptional circumstances should relief be granted. . . . To set aside a judgment based upon extrinsic mistake one must satisfy three elements. First, the defaulted party must demonstrate that it has a meritorious case. Second[], the party

seeking to set aside the default must articulate a satisfactory excuse for not presenting a defense to the original action. Last[], the moving party must demonstrate diligence in seeking to set aside the default once ... discovered." *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981–82 (internal citations and quotations omitted; emphasis in original).

CCP § 473(d) empowers the Court to set aside any judgment that is void as a matter of law, e.g., lack of subject matter jurisdiction; lack of personal jurisdiction; lack of proper service of the summons and complaint; or the judgment violated due process rights. See *Dhawan v. Biring* (2015) 241 Cal.App.4th 963, 973–74; See also *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544; See also *Heidary v. Yadollahi* (2002) 99 Cal.App.4th 857, 862–64. "It is well settled that a judgment or order which is void on its face, and which requires only an inspection of the judgment roll or record to show its invalidity, may be set aside on motion, at any time after its entry, by the court which rendered the judgment or made the order." *Hiroko Kawakita Hayashi v. Lorenz* (1954) 42 Cal.2d 848, 851. "Code of Civil Procedure section 473, subdivision (d) (hereafter section 473(d)), provides in relevant part that a court "may ... on motion of either party after notice to the other party, set aside any void judgment or order." Under this provision, a party may move to vacate a judgment on the ground of improper service of process." *California Capital Insurance Company v. Hoehn* (2024) 17 Cal.5th 207, 212.

"Mistake is not a ground for relief under section 473, subdivision (b), when the court finds that the 'mistake' is simply the result of professional incompetence, general ignorance of the law, or unjustifiable negligence in discovering the law. Further, the term surprise, as used in section 473, refers to some condition or situation in which a party is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against. Finally, as for inadvertence or neglect, to warrant relief under section 473 a litigant's neglect must have been such as might have been the act of a reasonably prudent person under the same circumstances. The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief. It is the duty of every party desiring to resist an action or to participate in a judicial proceeding to take timely and adequate steps to retain counsel or to act in his own person

to avoid an undesirable judgment. Unless in arranging for his defense he shows that he has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon important business his motion for relief under section 473 will be denied. Courts neither act as guardians for incompetent parties nor for those who are grossly careless of their own affairs. The only occasion for the application of section 473 is where a party is unexpectedly placed in a situation to his injury without fault or negligence of his own and against which ordinary prudence could not have guarded.” Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206 (internal citations and quotations omitted).

Defendant moves to set aside the default judgment only pursuant to CCP § 473(b). Defendants state as follows: “Defendant BLYTHE STREET PROPERTIES, LLC (“Defendant”) will, and hereby does, request an Order to Set Aside and Vacate the Default Judgment entered on the matter and allow Defendant to file their answer to the Complaint. This Motion is made pursuant to Code of Civil Procedure section 473(b) and the Court’s inherent equitable power on the grounds that the default judgment was entered due to Defendant’s mistake, inadvertence, surprise or excusable neglect, specifically because the claim was timely tendered to Defendant’s insurance company; however, Defendant’s insurance agent accidentally forgot to hire counsel to defend the action - so no responsive pleading was filed. The failure to file a responsive pleading was not intentional but was caused by Defendant’s insurance company’s failure to assign coverage without Defendant knowing, and Defendant is now acting diligently to correct the mistake.” (Notice of Motion, p. 2, lines 4-14).

Here, Defendant’s default was entered on January 7, 2026. Default judgment has yet to be entered. The motion was filed on February 24, 2026 within six months of the entry of default. The six month limit for discretionary relief under CCP § 473(b) runs from the date of entry of default. *Rutan v. Summit Sports, Inc.* (1985) 173 Cal.App.3d. 965, 970. Thus, the motion is timely filed.

On July 29, 2026, the motion was originally called for hearing. The Court noted the following defects in the motion.

No default judgment had been entered in this action. However, Defendant specifically moved to vacate the default judgment and not the entry of default. The Court further noted that Defendant failed to submit competent facts to show that the entry of default occurred through the mistake, inadvertence, surprise, or excusable neglect of Defendant, or through the

mistake, inadvertence, surprise, or neglect of Defendant's counsel. Instead, Defendant attempted to demonstrate the mistake, inadvertence, surprise, or excusable neglect of the insurance carrier – Zurich/Sedgwick and its adjuster Cedric Martin. However, no competent declaration was submitted by Mr. Martin or anyone from Zurich/Sedgwick to indicate that the entry of default occurred through their mistake, inadvertence, or excusable neglect.

On July 29, 2026, the motion was continued to September 23, 2026 and the parties were allowed to file supplemental briefs.

As to whether the Court can treat the motion as a motion to vacate entry of default rather than a motion to vacate entry of default judgment, recognized authority exists for the proposition that the Court may treat the motion as a motion to vacate entry of default despite the defect in notice when the memorandum of points and authorities makes clear that this is the relief that is sought. *Luxury Asset Lending, LLC v. Philadelphia Television Network, Inc.*

(2020) 56 Cal.App.5th 894, 909 provides guidance. “[W]hile the notice of motion itself only mentioned vacating the default judgment, the memorandum of points and authorities expressly argued both the default and the default judgment should be set aside under section 473.5. As a general rule, the trial court may consider only the grounds stated in the notice of motion. [Citations.] An omission in the notice may be overlooked if the supporting papers make clear the grounds for the relief sought.” *Id.* (internal quotation omitted).

Here, the original memorandum of points and authorities sets forth references to attempting to set aside a default judgment and even a dismissal. However, the memorandum of points and authorities also included references to indicate that the motion was intended to set aside the entry of default. Plaintiffs also failed to oppose the motion on this ground, and Plaintiffs themselves, in the opposition, also intermingled “entry of default” and “default judgment” without, apparently, noticing the distinction and the fact that no default judgment had been entered. Under the authority identified above, the Court may treat the motion as a motion to set aside entry of default.

As to the second defect noted above, Defendant submitted a declaration from an employee/agent of Sedgwick. (Decl. Jamie Pattee). While the declaration is not from Mr. Martin himself, the declaration is from an employee of Sedgwick who provided the specific email chain in which Mr. Martin

identified himself as the claims administrator handling the case. The email was sent on December 16, 2025. Declarant states that Mr. Martin's employment ended on January 9, 2026. (Id. at ¶ 4.) However, the failure to hire counsel by the insurer does not qualify as relief under the mandatory provision of CCP § 473(b). *Stafford v. Mach* (1998) 64 Cal.App.4th 1174, 1187. Thus, to support relief, the facts must indicate excusable neglect. Here, the declaration of Jamie Pattee does not demonstrate excusable neglect on the part of Sedgwick.

However, Defendant's own reliance on the carrier taking steps to file a responsive pleading to protect its interests may constitute sufficient grounds to support setting aside the entry of default based on Defendant's own mistake, inadvertence, surprise, or excusable neglect. In *Rogalski v. Nabers Cadillac* (1992) 11 Cal.App.4th 816, the Court held that an insurer who reasonably believed its insurer was handling the matter and would respond was entitled to relief from the entry of default. "Golden Eagle may well have acted deliberately, indeed reprehensibly, in failing to either file a responsive pleading or give Nabers adequate warning that it would not do so. That does not, however, justify denying relief to this defendant, who was so obviously caught unaware by his insurer's actions." Id. at 820 (holding that insured was entitled to relief when it reasonably relied on insurer to the complaint in a timely manner).

In *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, the Court reversed denial of relief where the insured had promptly forwarded the complaint to its broker, the broker forwarded it to the insurers, and the insurer failed to retain counsel or appear on the insured's behalf. "Something went awry after transmittal of the complaint to the insurance carrier, but precisely what is not known. This was a classic instance of mistake and inadvertence—but not on the part of [Permatex], which did what all corporations do when served with a complaint: send it to the carrier for handling. Thus ... there are abundant grounds for reversal under [section 473, subdivision (b)] because of mistake, inadvertence and excusable neglect. We could not agree more." Id. at 694.

The declaration of Michael Boren states as follows: "Zurich then assigned the claim to Third- Party Administrator Sedgwick - who engaged in preliminary discussions with me and verbally accepted duty to defend and informed me that they would assign coverage. Zurich/Sedgwick mistakenly and inadvertently failed to hire counsel to defend the claim. I did not discover that Zurich/Sedgwick did not hire counsel and file a responsive pleading until

I received a copy of the Default in the mail. My failure to file a responsive pleading to the Complaint on behalf of Defendant was the result of mistake/inadvertence/excusable neglect of believing that my insurer was hiring counsel to file the responsive pleading in a timely manner as they had accepted duty to defend. Had I known that Zurich/Sedgwick had not hired counsel, I would have hired my own counsel and filed a timely responsive pleading as Defendant's intention was always to defend the action." (Decl., Michael Boren, ¶¶ 3-7, dated February 16, 2026). These facts support grounds to grant relief from the entry of default based on Defendant's mistake, inadvertence, surprise, or excusable neglect.

Therefore, for the foregoing reasons, Defendant's Motion to Set Aside Entry of Default is granted.

Defendant is ordered to file and serve the proposed Answer within three days of this date.

Defendant is ordered to give notice of this ruling.